DILG Technical Assistance Project for Local Resource Institutes on the Utilization of CSIS Results for CY 2022

PARTNERSHIP AGREEMENT

This Partnership Agreement made and entered into this ____ day of OCT 20 2022 2022, in ~~PASIG CITY, SAN JUAN CITY, and~~ MUNICIPALITY OF PATEROS by and between:

The **DEPARTMENT OF THE INTERIOR AND LOCAL GOVERNMENT**, with principal office and address at DILG-NAPOLCOM Center, EDSA corner Quezon Avenue, West Triangle, Quezon City, represented by **DILG SECRETARY ATTY. BENJAMIN C. ABALOS, JR.**, hereinafter referred to as the **"DILG"**

-and-

The **PARTIDO STATE UNIVERSITY**, an educational institution of higher learning with principal office and address at Goa, Camarines Sur, represented by **DR. RAUL G. BRADECINA**, University President, hereinafter referred to as **"RECIPIENT LRI."**

WITNESSETH:

WHEREAS, the **DILG,** pursuant to its mandate to capacitate local government units (LGUs) to improve their performance and enable them to effectively and efficiently deliver services to their constituents, developed the Citizen Satisfaction Index System (CSIS), a project component under the Civil Society Organization Peoples Partnership Participation Program that the Bureau of Local Government Supervision (BLGS) initiated in 2012;

WHEREAS, the CSIS, a set of data tools designed to gauge citizens' general satisfaction on the various local services that LGUs are mandated to provide, has already been implemented in all cities and two-hundred nine (209) municipalities nationwide and has partnered with one-hundred forty-seven (147) Local Resource Institutes (LRIs);

WHEREAS, the **DILG** has trained and commissioned LRIs to do fieldwork, data analysis and report preparation in order to generate Citizen Satisfaction Reports (CS Reports);

WHEREAS, the **RECIPIENT LRI** is a local academic institution, mainly operating in the area of **Partido District of Camarines Sur** and its nearby surroundings, has been trained and accepted as DILG's intermediary in the LGU where it is assigned, possessing and warranting expertise in social research, capable of mobilizing personnel while having more familiarity with the local social context in the identified target sites, and are capable of establishing rapport with citizens cutting across different socio-demographic backgrounds;

WHEREAS, in order to maximize the utilization of the CS Reports, the BLGS, through the Civil Society Organization/ People's Participation Partnership Program (CSO/PPPP) PMO, initiated the DILG Technical Assistance Project for Local Resource Institutes on the Utilization of the CSIS Results (DILG TA Project for LRIs), a grant project open only for the LRIs that have been trained from 2017 to 2019 implementation of the CSIS;

WHEREAS, the DILG TA Project for LRIs aims to provide technical and financial assistance to LRIs in support of programs/projects that promote responsive local governance, through partnerships with LGUs and Civil Society Organizations (CSOs);

WHEREAS, a National Project Committee (NPC) has been created under Department Order No. 2015-313 and amended through Department Order No. 2022-305 to assess project proposals submitted by the LRIs and eventually select LRI-proposed projects that can be supported by the DILG TA Project for LRIs;

WHEREAS, the eligibility of the **RECIPIENT LRI** is not dependent on any bid amount but on having been a CSIS-trained LRI; and that the DILG TA Project for LRIs is a partnership between the **DILG** and the **RECIPIENT LRI** to implement a joint project that involves no acquisition of any goods or services, hence no bidding process is required, thereby exempted from the provisions of Republic Act No. 9184 (*Government Procurement Reform Act)*;

WHEREAS, the DILG TA Project for LRIs has been implemented in CYs 2015 to 2017. The CY 2020 implementation was discontinued due to the imposition of the COVID-19 lockdown in most parts of the country. For its CY 2022 implementation, a maximum of fifteen (15) project proposals will be selected as beneficiaries for the grant.

WHEREAS, the **PARTIDO STATE UNIVERSITY**, has signified its intent to avail of the DILG TA Project for LRIs and has submitted a proposal to implement a project entitled **Combating Coastal Debris through Community-based IEC Materials Developed using Participatory Approach**, that was reviewed and assessed by the NPC based on the CY 2022 DILG TA Project for LRIs' Implementation Guidelines.

NOW, THEREFORE, for and in consideration of the above premises and their mutual covenants hereinafter set forth, the parties hereon have agreed as follows:

I. RESPONSIBILITIES OF THE PARTIES

A. DILG

1. Screen and evaluate thoroughly all submitted proposals based on completeness of requirements and responsiveness to the over-all objectives of the DILG TA Project for LRIs, to be endorsed to the NPC for final evaluation and approval;

2. Process and release the grant to the **RECIPIENT LRI** in the amount of TWO HUNDRED THOUSAND PESOS (PhP 200,000.00), which shall be released in two tranches: 85% upon signing of the Partnership Agreement, with an attached Detailed Project Work Plan *(Annex C)*, and 15% after receiving one (1) original signed copy of the Project Output and/or Project Documentation Report *(Annex E)*, Liquidation Report *(Annex F)*, and Statement of Expenditure *(Annex G)* and/or Report of Checks Issued and Report of Disbursement (for State Universities and Colleges);

3. Provide the **RECIPIENT LRI** access to the CSO/PPPP Online Monitoring System, containing all the Annexes mentioned in the Project Implementation Guidelines available for download, for the duration of the implementation period;

4. Monitor the implementation of the selected project on a weekly basis and ensure that the same is in accordance with the **RECIPIENT LRI's** duly approved Detailed Project Work Plan, pursuant to its oversight and supervisory functions;

5. Evaluate the Project Documentation Report, Liquidation Report and Statement of Expenditure submitted by the **RECIPIENT LRI** prior to the release of the 2nd tranche of the grant, i.e. 15% of the grant amount;

6. Submit the Liquidation Report and Statement of Expenditure of the **RECIPIENT LRI** to the DILG Accounting Division to report the utilization of the fund for recording to the book of accounts;

7. Approve, accredit and accept the submitted project or output of the **RECIPIENT LRI**, or to direct, recommend or suggest proper or further plan of actions needed to be accomplished in order to ensure quality, useful and efficient project outcome; and

8. Perform other functions that may be deemed necessary to ensure the success of the DILG TA Project for LRIs' implementation.

B. RECIPIENT LRI

1. Within five (5) working days upon receipt of the Approval Letter, Partnership Agreement, and Detailed Project Work Plan, the LRI must do the following:

    a. Write a Formal Acceptance Letter informing the DILG, through the BLGS-CSO/PPPP PMO of their acceptance and commitment to fully implement the project. The letter must be signed by the University President/Chancellor/Campus Director;

    b. Review the herein Partnership Agreement through the Legal Team/Counsel of the University/College; and

    c. Accomplish the Detailed Project Work Plan, noted by the University President /Chancellor/Campus Director.

    The signing of the Partnership Agreement shall be held virtually via Zoom after the abovementioned five (5) working days. The PMO shall provide the full details upon approval and selection of the proposal.

2. Send **four (4) original copies** of the signed Partnership Agreement, together with the corresponding notarial fee in the amount of (PhP 300.00), the Formal Acceptance Letter, and Detailed Project Work Plan, via mail or courier to this address:

    CIVIL SOCIETY ORGANIZATION/PEOPLES PARTICIPATION PARTNERSHIP PROGRAM (CSO/PPPP) PMO
    Bureau of Local Government Supervision
    Department of the Interior and Local Government
    25th floor, DILG-NAPOLCOM Center
    EDSA corner Quezon Avenue, Quezon City, 1104

3. Submit one (1) copy of all the required documents enumerated in the CY 2022 DILG TA Project for LRIs Implementation Guidelines, together with the aforementioned signed Partnership Agreement and Detailed Project Work Plan;

    a. In case of any deviation from the original submitted Detailed Project Work Plan, the recipient LRI must submit a letter of explanation signed by the University President /Chancellor/Campus Director addressed to:

ATTY. ODILON L. PASARABA, CESO III
Director, Bureau of Local Government Supervision
Department of the Interior and Local Government
25th floor, DILG-NAPOLCOM Center
EDSA corner Quezon Avenue, Quezon City, 1104

4. Provide the **DILG** with two (2) official receipts for the grant amount it received from the latter: for the first tranche (PhP 170,000.00) and for the second tranche (PhP 30,000.00);

5. Implement the approved project entitled **Combating Coastal Debris through Community-based IEC Materials Developed using Participatory Approach** within two (2) months (September – October 2022);

6. Provide the **DILG** with the progress of the project implementation through the **Progress Monitoring Report** *(Annex D)* found in the Online Monitoring System every Friday of the implementation period;

7. Keep and maintain financial and accounting records for the fund transfer in accordance with generally accepted accounting principles, and that the **RECIPIENT LRI** shall allow examination of financial records by the **DILG** and the Commission on Audit (COA) for monitoring and audit of the fund utilization.

8. Complete the implementation of the approved project on **October 31, 2022**;

9. Submit a copy of the following originally signed documents within **thirty (30) days** after project completion:

    a. Project Outputs and/or Documentation Report;
    b. Liquidation Report;
    c. Statement of Expenditure; and
    d. Report of Checks Issued and Report of Disbursement (for State Universities and Colleges).

    Items b, c, and d must be in compliance and in accordance with existing COA rules and regulations and must be certified by the School Accountant. For State Universities and Colleges, the Liquidation Report must bear the stamp **"Received"** by their respective COA Auditor. All the above-mentioned documents for submission must be duly signed and approved by the University President.

    Failure to submit both the Project Outputs and/or Documentation Report and the Liquidation Report and/or Report of Checks Issued and Report of Disbursement on the aforementioned schedule may cause the forfeiture of the remaining 15% of the grant amount and a temporary blacklisting of the LRI from future engagements with any PMO Projects, Programs, and/or Activities;

10. Submit a formal letter of request to the **DILG** should the **RECIPIENT LRI** need an extension, stating their reason and expected date of project completion. The expected date of completion must be within the maximum allowed extension. The **RECIPIENT LRI** shall only be allowed a maximum of one (1) month extension from the stipulated implementation duration in this partnership agreement.

11. Inform the **DILG**, through a formal letter, of any unused balance upon completion of the project and return the corresponding unused amount to the **DILG**;

12. Ensure that the Project Outputs and/or Project Documentation Report submitted to the **DILG**, or any of its authorized representatives, is a completed, duly approved and accepted project output and completion report, based on the terms and conditions of the agreement, the approved project proposal, the CY 2022 DILG TA Project for LRIs Implementation Guidelines, and Evaluation Criteria of the National Project Committee; and

13. Perform other functions as may be deemed necessary to ensure the success of the project.

II. AMENDMENTS AND WAIVERS

No provision of this Agreement shall be amended or waived orally nor may any breach of or default under any of the provisions of this Agreement be waived orally but (in each case) only by an instrument in writing signed by or on behalf of the party against whom enforcement of the amendment waiver is sought. Failure by any party to demand strict compliance with any of the terms and conditions herein stipulated shall not be construed as a waiver thereof. Any waiver shall be in writing and signed by the party making the waiver. The rights and remedies herein provided are cumulative and not exclusive of any rights and remedies provided by law or by any other agreement between the parties.

III. NOTICES

The parties hereby agree that that their respective addresses as set forth in page one (1) of this Agreement shall be their respective addresses for purposes of notice and demand, if any, be required under this Agreement or documents and instruments executed pursuant hereto, until and unless another address shall be formally communicated to the other party in writing.

IV. TERMINATION OF THE AGREEMENT

The **DILG** may, based on evidence of failure of the **RECIPIENT LRI** to comply with the terms of the agreement, or in the event the **RECIPIENT LRI** incurs unreasonable delay, inaction, or break of obligation under the Memorandum of Agreement, issue a notice of intent to terminate the agreement. The **DILG** shall give not less than fourteen (14) days written notice to the **RECIPIENT LRI** of intent to terminate the agreement in whole or in part. The termination notice shall establish the effective date of the termination of the agreement and the amount and date of payment of any sums due either party.

If any dispute or difference of any kind whatsoever shall arise between the parties in connection with the implementation or interpretation of this contract, the parties shall make every effort to resolve amicably such dispute.

V. EFFECT OF TERMINATION

Upon termination, the **RECIPIENT LRI** must refund the portion of the grant funds paid or owed to the **DILG** and allocable to the terminated project work and submit a written explanation for failed project completion. Funds needed to meet existing obligation shall be retained. The **RECIPIENT LRI** shall not make any new commitments or enter into new contracts upon the termination of herein agreement. The **RECIPIENT LRI** shall also reduce the amount of other outstanding commitments insofar as possible.
All other funds shall be refunded to the **DILG**.

VII. SEPARABILITY OF PROVISION

If any provision of this Agreement or any document or instrument relevant, executed or delivered pursuant hereto shall be held invalid, the remainder thereof shall not be affected thereby

IX. EFFECTIVITY CLAUSE

This Partnership Agreement shall take effect upon signing of both parties to this document

IN WITNESS WHEREOF, the parties hereto sign this document at ~~PASIG CITY, SAN JUAN CITY, and~~ MUNICIPALITY OF PATEROS Philippines this ____ day of OCT 20 2022, 2022.

FOR THE **DILG**
By:

ATTY. BENJAMIN C. ABALOS, JR.
Secretary

FOR THE **RECIPIENT LRI**
By:

RAUL G. BRADECINA, Ph.D.
University President

Through:

MARLO L. IRINGAN
Undersecretary for Local Government

FUNDS PROVIDED:

ESTER A. ALDANA, CESO II
Assistant Secretary
Finance and Comptrollership

by:

GAUDENCIO L. APOSTOL
Chief, Budget Division, FMS

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WITNESSES:

ATTY. ODILON L. PASARABA, CESO III
Assistant Secretary for Local Government

by:

DEBIE T. TORRES, CESO V
Officer-in-Charge, BLGS

PROF. PATRICIA M. CANDELARIA
Vice-President for Research,
Extension and External Affairs

ACKNOWLEDGMENT

Republic of the Philippines)
Quezon City) S.S.

BEFORE ME, a Notary Public for and in PASIG CITY, SAN JUAN CITY, and MUNICIPALITY OF PATEROS, this _____day of OCT 20 2022 2021, personally appeared:

NAME	GOVERNMENT ISSUED ID	DATE/PLACE ISSUED
ATTY. BENJAMIN C. ABALOS, JR	_____	_____
RAUL G. BRADECINA, Ph.D.	P7648090B	September 21, 2021 / DFA Legaspi

known to me and to me known to be the same persons who executed the foregoing Agreement and they acknowledged to me that the same is their free and voluntary act and deed and that of the institutions they respectively represent.

This instrument consisting of six (6) pages, including this page whereon this Acknowledgment is written, refers to a Partnership Agreement signed by the parties together with their instrumental witnesses on each and every page thereof.

WITNESS MY HAND AND SEAL this ____day of OCT 20 2022 2022, at the place first above written.

NOTARY PUBLIC
Notarial Commission Serial No. _____
Until_____
PTR No. _____;_____;_____
IBP No. _____;_____;_____
Official Address: _____

ATTY. ANJELO D. SATURNINO
Notary Public
Until June 30, 2022
PTR NO. 1572793, 01-06-2022, SAN JUAN CITY
IBP NO. 172304, 01-06-2022, RSM
Roll of Attorneys No. 74063
Appointment No. 191 (2020-2021)

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